☐ CIRCUIT COURT ☐ DISTRICT COURT OF MARYLAND FOR City/County

Located at _____ Case No. _____
Court Address

Tracking # _____

STATE OF MARYLAND vs. _____ _____
Defendant DOB

PETITION FOR EXPUNGEMENT OF RECORDS (ACQUITTAL, DISMISSAL, PROBATION BEFORE JUDGMENT, NOLLE PROSEQUI, STET, NOT CRIMINALLY RESPONSIBLE, NO FINDING, OR TRANSFER TO JUVENILE DISPOSITION)

(In this petition, references are to the Annotated Code of Maryland, and references to "crime," "criminal action," and "civil offense or infraction" refer to any criminal or civil offense, other than a violation of the vehicle or traffic laws, ordinances, or regulations, that does not carry a possible sentence of imprisonment.)

1. (Check one of the following boxes) On or about _____, I was ☐ arrested, ☐ served with a summons, or
Date

☐ served with a citation by an officer of the _____
Law Enforcement Agency

at _____ , Maryland, as a result of the following incident _____

_____.

2. I was charged with the offense of _____.

3. On or about _____, the charge was disposed of as follows (check all that apply, making sure that each
Date

statement is true and correct):

☐ I was **acquitted/found not guilty** of the charge. Either three (3) years have passed since the disposition, or a General Waiver and Release is attached.

☐ the charge was otherwise **dismissed**. Either three (3) years have passed since that disposition, or a General Waiver and Release is attached.

☐ a **probation before judgment** was entered on the charge, but the **conduct on which the charge was based is no longer a crime**.

☐ a **probation before judgment** was entered on the charge, and the **conduct on which the charge was based is still a crime**. The charge did not allege a violation of Criminal Law Article, §§ 2-503, 2-504, 2-505, or 2-506; Criminal Law Article, § 3-211; or former Article 27, § 388A or § 388B. Either (a) at least three (3) years have passed since that disposition, or (b) I have been discharged from probation, whichever is later. Except for any conviction of a charge where the conduct on which the charge was based is no longer a crime, I was not convicted of any crime during the three-year period immediately following entry of the probation before judgment. I am not now a defendant in any pending criminal action.

☐ a **probation before judgment** was entered on violation of Transportation Law Article § 21-902 (a) or (b). The charge did not allege a violation of Transportation Article, § 21-902 (c), (d), (h), or (i). At least fifteen (15) years have passed since the date I was discharged from probation. In the fifteen (15) years since being discharged from probation, I have not received another probation before judgment for a violation of § 21-902 of the Transportation Law Article; I was not convicted of any crime, other than a minor traffic violation or a crime where the act on which the conviction is based is no longer a crime. I am not now a defendant in any pending criminal action.

☐ a **nolle prosequi** was entered. Either three (3) years have passed since that disposition, or a General Waiver and Release is attached. I am not now a defendant in any pending criminal action.

☐ a **stet** was entered. Three (3) years have passed since that disposition. I am not now a defendant in any pending criminal action.

☐ I was found **not criminally responsible** for a crime specified in Criminal Procedure Article, § 10-105 (a)(9) or (a)(10). Three (3) years have passed since the finding of not criminally responsible. I am not now a defendant in any pending criminal action.

☐ the charge, which is listed in CP §10-110 (a) (1), (2), or (3), was disposed of with a **no finding** designation or was included in a case designated by the court as having been terminated without finding.

4. ☐ The case was **compromised or dismissed** pursuant to Criminal Law Article, § 3-207, former Article 27, § 12A-5, Article 10, § 37. Three (3) years have passed since that disposition.

5. ☐ The case was **transferred** to the juvenile court pursuant to Criminal Procedure Article, §§ 4-202 or 4-202.2. (Note: This petition must be filed in the court that issued the order of transfer. The expungement is only of the records in the criminal case, not the records in the juvenile court. See Criminal Procedure Article, § 10-106.)

6. ☐ The case began in one court and was **transferred** to another court other than the juvenile court. (Note: This petition must be filed in the court to which the case was transferred.)

I request the court to enter an Order for Expungement of all police and court records pertaining to the above arrest, detention, confinement, and/or charges.

I solemnly affirm under the penalties of perjury that the contents of this petition are true to the best of my knowledge, information, and belief, and that the charge to which this petition relates was not for any non-incarcerable violation of the vehicle laws of the State of Maryland, or any traffic law, ordinance, or regulation, nor is it part of a unit the expungement of which is precluded under Criminal Procedure Article, § 10-107.

Signature of Attorney	Attorney Number	Date	Signature of Defendant	Date
Printed Name			Printed Name	
Street Address			Street Address	
City, State, Zip		Telephone	City, State, Zip	Telephone
E-mail		Fax	E-mail	Fax

Reset